



## ADMINISTRATIVE CONFERENCE OF THE UNITED STATES

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### Information Interchange Bulletin No. 040

## Responding to Rulemaking Comments

### What are agencies' legal obligations to request and consider comments in notice-and-comment rulemaking?

Under the Administrative Procedure Act, agencies must give interested persons the opportunity to submit comments on proposed rules. [IIB-014](#). Agencies must consider the "relevant matter presented" in those comments before finalizing the proposed rules. [5 U.S.C. § 553\(c\)](#).

### Are agencies required to respond to comments received on proposed rules?

When agencies finalize proposed rules, they must "respond to significant comments received during the period for public comment." [Perez v. Mortg. Bankers Ass'n](#) (2015). Other laws may also require agencies to respond to comments received during rulemaking. For example, agencies must explain changes made to proposed rules in response to comments received on initial analyses prepared under the Regulatory Flexibility Act. [5 U.S.C. § 604\(a\)\(2\)](#).

### How do courts review agency responses to comments received in the rulemaking process?

An agency's failure to respond to significant comments renders the final rule arbitrary and capricious. [Ohio v. EPA](#) (2024). Courts must "hold unlawful and set aside" such rules. [5 U.S.C. § 706\(2\)\(A\)](#). Courts ordinarily vacate the rule and remand it to the agency to correct the procedural error, but courts sometimes allow the rule to remain in effect if they conclude that the agency will be able to justify its decision on remand and that vacating the rule would be disruptive. [Am. Bankers Ass'n v. NCUA](#) (D.C. Cir. 2019).

### Determining what comments are significant

Determining whether a rulemaking comment is significant is a fact-dependent inquiry. [Oakbrook Land Holdings, LLC v. Comm'r](#) (6th Cir. 2022). Agencies are not required to respond to every comment received during the notice-and-comment process, but they must respond to comments that "raise points relevant to the agency's decision and which, if adopted, would require a change in an agency proposed rule[.]" [Nat'l Shooting Sports Found., Inc. v. Jones](#) (D.C. Cir. 2013). Agencies are not required to respond to comments that are not material to the proceeding or that are overly speculative or cryptic. [Direct Communs. Cedar Valley, LLC v. FCC](#) (10th Cir. 2014).

### Providing adequate responses to comments

When responding to significant comments, agencies must explain their decisions in a manner that enables courts "to see what major issues of policy were ventilated . . . and why the agency reacted to them as it did." [Bloomberg, LP v. SEC](#) (D.C. Cir. 2022). Courts often assess the adequacy of agency responses in terms of the canonical factors governing arbitrary-and-capricious review, such as whether the agency addressed important aspects of the problem and offered explanations that are consistent with the evidence before the agency. For example, in [Ohio v. Becerra](#) (6th Cir. 2023), the court held that a final rule adequately responded to a comment regarding the rule's consistency with state law when the agency addressed how the rule related to a similar federal law.

### Relationship to fair notice doctrines

Before responding to comments, agencies must first ensure that their proposed rules provide adequate notice of the issues to enable interested persons to comment meaningfully on the rule. [Nat'l Lifeline Ass'n v. FCC](#) (D.C. Cir. 2019). Relatedly, in some cases agencies must also make available certain supporting materials—such as studies, reports, and data—to support the public comment process. [IIB-005](#). In addition, courts generally require final rules to represent the "logical outgrowth" of proposed rules so that members of the public are not deprived of the opportunity to comment on matters ultimately addressed in the final rule. [Long Island Care at Home, Ltd. v. Coke](#) (2007).

### Managing the comment process

ACUS has issued numerous recommendations to help agencies manage the comment process, including recommendations on the appropriate length of comment periods and on the acceptance of comments after the initial public comment period has ended. ACUS Rec. [2011-2](#). Agencies should also consider supplementing the notice-and-comment process in some circumstances by soliciting comments via requests for information and advance notices of proposed rulemaking. ACUS Rec. [2018-7](#). In addition, ACUS has issued recommendations regarding how agencies should manage mass, computer-generated, and falsely attributed comments. ACUS Rec. [2021-1](#).

### Additional Resources

ACUS Rec. [2021-1](#), *Managing Mass, Computer-Generated, and Falsely Attributed Comments*  
ACUS Rec. [2018-7](#), *Public Engagement in Rulemaking*  
ACUS Rec. [2013-6](#), *Remand Without Vacatur*  
ACUS Rec. [2011-2](#), *Rulemaking Comments*  
Todd Garvey, Cong. Rsch. Serv., [A Brief Overview of Rulemaking and Judicial Review](#) (2017)